

Ensuring the Timely and Orderly	)
Interconnection of Large Loads	)

INITIAL COMMENTS OF THE DIGITAL ENERGY COUNCIL

uncertainty for developers. The Commission should direct jurisdictional transmission providers to include clear procedures within their Open Access Transmission Tariffs (OATTs) for evaluating large, transmission-level customers capable of providing real-time telemetry and verifiable curtailment. Recognizing flexible demand within existing OATT frameworks would not create new service categories but would clarify how transmission providers study, model, and coordinate with these facilities. Doing so would improve queue efficiency, reduce uncertainty in planning, and attract private investment in grid-responsive infrastructure that strengthens reliability.

2. Enable Expedited Interconnection for Flexible Loads

Current procedures make no distinction between firm, inflexible demand and loads that can provide measurable system benefits. The Commission should direct transmission providers to establish a voluntary, incentive-based fast-track process for customers that commit to verifiable flexibility agreements. Transmission providers should post transparent study timelines, milestone schedules, and progress updates for these projects to ensure accountability and predictability. The Commission should also examine performance expectations for timely completion of studies and require corrective or remedial actions when deadlines are missed without justification. Clear schedules, voluntary participation, and consistent oversight would improve transparency, give developers confidence in project timelines, and accelerate the interconnection of flexible loads that support grid reliability and balance.

3. Integrate Generation and Load Interconnection Studies

The Commission should require transmission providers to establish a single, integrated interconnection process under their OATTs for projects that combine generation and load at the same point of interconnection. Current procedures force developers to complete separate studies for generation and load, even when they are part of a single co-located facility. This duplication increases costs, creates conflicting assumptions, and slows project development. A unified process would allow transmission providers to evaluate combined impacts of generation and load within a single study cycle.

4. Extend “Option-to-Build” Rights to Large and Hybrid Load Customers

Even when projects have completed interconnection studies and are ready to move forward, network upgrades often stall due to limited utility construction capacity or competing priorities. Many developers are willing and able to finance and construct approved upgrades directly but lack a mechanism to do so. The Commission should extend the “option-to-build” authority, currently available to generator interconnection customers to qualifying large-load and hybrid facilities, subject to Commission oversight and cost-crediting provisions.

5. Modernize Cost-Responsibility and Tariff Treatment

Tariff and cost-allocation frameworks often treat all large customers alike, without considering differences in flexibility, co-location, or system impact. This can unfairly burden facilities that actually reduce grid stress. The Commission should affirm DOE's principle that large loads and hybrid facilities remain responsible for their assigned upgrade costs but clarify that those demonstrating verifiable curtailment or on-site generation may qualify for phased or partial cost responsibility. Aligning cost responsibility with actual system impact ensures fair treatment, promotes investment in flexible technologies, and encourages efficient infrastructure development.

6. Advance Flexible-Load Integration Through FERC-Led Stakeholder Processes

While this rulemaking focuses on interconnection, the benefits of flexible load extend into wholesale market design and regional system operations. The absence of consistent frameworks across RTOs and ISOs creates uncertainty for developers and operators. The Commission should leverage its existing technical conference and regional stakeholder processes along with its existing partnerships with the National Association of Regulatory Utility Commissioners (NARUC) to evaluate how flexible large loads can better participate in reliability and market operations. These forums can help identify best practices from early-adopter regions, such as ERCOT, and translate them into national guidance. This effort would promote uniform treatment, ensure consistent recognition of flexibility across markets, and strengthen the reliability of the transmission system nationwide.

III. Conclusion

The United States is entering a period of rapid load growth driven by data centers, artificial intelligence, digital-asset mining, and advanced manufacturing. This growth is reshaping the grid and creating an opportunity to modernize how large customers connect and operate. If managed effectively, these new loads can strengthen reliability, attract investment, and enhance national competitiveness.

By clarifying interconnection pathways for flexible large loads, integrating generation-and-load studies, creating voluntary expedited service options, and extending option-to-build authority, the Commission can establish a more predictable and transparent framework for new demand. Clear timelines, consistent accountability, and recognition of flexibility as a system resource will reduce delays and improve coordination across markets.

Beyond this rulemaking, the Commission can use its existing authorities and convening power, through technical conferences, coordination with RTOs and ISOs, and engagement with NARUC, to promote best practices and expand the adoption of flexible load nationwide.

The Digital Energy Council supports the Department of Energy's initiative and the Commission's leadership in this proceeding. DEC and its members stand ready to contribute data, technical expertise, and industry insight to help advance these reforms and strengthen the nation's transmission and energy infrastructure.

IV. About the Digital Energy Council

The Digital Energy Council is a non-profit advocacy organization founded in 2023 to advance policies at the intersection of energy and digital infrastructure. DEC was created on the understanding that energy is the foundation of the digital economy, powering blockchain, bitcoin mining, artificial intelligence, and advanced computing. The Council brings together industry leaders and policymakers to strengthen grid reliability, expand flexible load participation, and ensure digital infrastructure growth is supported by abundant and affordable power.

Respectfully submitted,

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